WHITFIELD CARTER LLP
22 Bishopsgate, London EC2N 4BQ
T +44 (0)20 7946 0500 | www.whitfieldcarter.com | DX 138 London

CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

Project Drake

THIS AGREEMENT is dated 18 September 2025

PARTIES

(i) Bracken Group plc, a company incorporated in England and Wales (registered number 03318842) whose registered office is at Bracken House, Wellington Road, Birmingham B15 1AA (the "Recipient"); and

(ii) Harwood Valve & Controls Limited, a company incorporated in England and Wales (registered number 02987641) whose registered office is at Sawley Marina Industrial Estate, Long Eaton, Nottingham NG10 3AE (the "Disclosing Party").

BACKGROUND

The parties wish to explore a possible transaction involving the acquisition by the Recipient of the entire issued share capital of the Disclosing Party (the "Purpose"). In connection with the Purpose, the Disclosing Party may disclose Confidential Information to the Recipient. This Agreement sets out the terms on which such Confidential Information is to be treated.

IT IS AGREED as follows:

1. **Definitions.** "Confidential Information" means all information of whatever nature, in whatever form, relating to the Disclosing Party, its business, affairs, customers, suppliers, finances, plans and the existence and subject matter of the discussions between the parties, disclosed before or after the date of this Agreement, excluding information which is or becomes public through no breach of this Agreement, was lawfully in the Recipient's possession before disclosure, or is independently developed without use of the Confidential Information.

2. **Confidentiality undertaking.** The Recipient shall keep the Confidential Information secret and confidential and shall not use it except for the Purpose, nor disclose it to any person except as permitted by Clause 3.

3. **Permitted disclosure.** The Recipient may disclose Confidential Information to those of its directors, officers, employees and professional advisers who need to know it for the Purpose, provided the Recipient procures that each such person complies with this Agreement as if a party to it, and to the extent required by law or any competent regulatory authority (subject to prior notice where lawful).

4. **No representation.** The Disclosing Party makes no representation or warranty as to the accuracy or completeness of the Confidential Information; no such warranty is to be implied. Any warranties will be set out only in a definitive agreement, if entered into.

5. **Return of information.** On written demand the Recipient shall return or destroy (and certify the destruction of) all Confidential Information and copies, save for one copy retained for compliance purposes or held on routine electronic back-up systems.

6. **Non-solicitation.** For 12 months from the date of this Agreement the Recipient shall not solicit for employment any senior employee of the Disclosing Party with whom it has had contact in

connection with the Purpose, save that this does not prevent the employment of any person responding to a bona fide public advertisement.

7. **No announcement.** Neither party shall make any announcement concerning the Purpose or the existence of discussions without the prior written consent of the other, save as required by law.

8. **Term.** This Agreement and the obligations in it continue for two years from the date of this Agreement, save that the obligations in respect of any trade secret continue for so long as the relevant information remains a trade secret.

9. **No obligation.** Nothing in this Agreement obliges either party to proceed with any transaction, and either party may terminate discussions at any time.

10. **Remedies.** The Recipient acknowledges that damages alone may not be an adequate remedy for breach, and that the Disclosing Party is entitled to seek the remedies of injunction, specific performance and other equitable relief.

11. **Governing law and jurisdiction.** This Agreement and any dispute arising out of it (including non-contractual disputes) are governed by the law of England and Wales, and the parties submit to the exclusive jurisdiction of the courts of England and Wales.

AS WITNESS the hands of the duly authorised representatives of the parties on the date first above written.

Signed for and on behalf of BRACKEN GROUP PLC: _____ Director
Signed for and on behalf of HARWOOD VALVE & CONTROLS LIMITED: _____ Director